REQUEST ABOUT A DELAWARE Sec. 1017A AUTOMATIC JUVENILE EXPUNGEMENT THAT DID NOT HAPPEN

TO: The office confirmed to handle this section 1017A correction.
Exact office and postal address, confirmed with that office:
.....

FROM: Maria-Alejandra O'Shaughnessy-Whitfield
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DATE OF BIRTH: 1968-12-31

REQUEST ABOUT A RECORD ELIGIBLE FOR AUTOMATIC EXPUNGEMENT UNDER 10 DEL. C. Sec. 1017A

A. WHY I AM WRITING

The committed route contract records that section 1017A eligible records run through the automatic program, with a petition or correction path where the automatic process did not occur.

No held source establishes the destination for a section 1017A correction after the automatic process did not occur. Contact the clerk of the Family Court that entered the adjudication; ask the clerk which office handles this correction, confirm whether a petition or correction request is needed, and obtain that office's name and postal address. The clerk is an office to ask, not an established filing destination for this request.

This packet is a correction inquiry. It does not supply an official petition or decide which process the receiving office requires. Confirm the required process before submitting it.

B. MY MATTER

[C1 - adjudication this request is about] Which juvenile adjudication is this request about? Give the court, the case number and the date.
.....
.....

[C2 - recorded eligibility category] Why do you believe this record was eligible for the automatic programme? The committed contract records the eligibility categories; state which one you believe applies.
.....
.....

[C3 - how the record was checked] How did you find out that the record is still there? Give the date you checked and what you looked at.

.....
.....

[C4 - what is being asked of the office] What are you asking this office to do?
.....
.....

C. WHAT I AM ASKING FOR

I am asking the office named above to check whether this record was eligible for the automatic programme, to tell me what it finds, and to expunge it if it is eligible. If the office cannot act, I am asking it to tell me who can.

DATE ..... SIGNATURE .....

(The person named above signs and dates this request personally. Nothing on this page is signed or dated for them.)

DELAWARE Sec. 1017A AUTOMATIC-FAILURE CORRECTION: CONFIRM THE PROCESS BEFORE SENDING

This page is for Maria-Alejandra O'Shaughnessy-Whitfield.

DELAWARE Sec. 1017A AUTOMATIC JUVENILE EXPUNGEMENT WHEN THE AUTOMATIC PROCESS DID NOT OCCUR

WHAT THE HELD JUVENILE ROUTE ESTABLISHES

Sec. 1017 favorable-termination matters are mandatory with no elapsed wait; Sec. 1017A eligible records run through the automatic program with a petition or correction path only where the automatic process did not occur. The three-year value here is the lowest discretionary Sec. 1018 branch; the five- and seven-year branches turn on the offense category, which the intake must collect.

This packet concerns an eligible record that was not automatically expunged. It does not decide that your record is eligible. The section 1017 mandatory and section 1018 discretionary routes remain separate.

WHERE TO ASK BEFORE SENDING

No held source establishes the destination for a section 1017A correction after the automatic process did not occur. Contact the clerk of the Family Court that entered the adjudication; ask the clerk which office handles this correction, confirm whether a petition or correction request is needed, and obtain that office's name and postal address. The clerk is an office to ask, not an established filing destination for this request.

Complete the line labelled "Exact office and postal address, confirmed with that office:" on the request page with the confirmed office name and postal address before sending.

WHAT YOU DO

Check whether the record is still there. If it has already been expunged, there is nothing to ask to correct. Fill C1-C4 from your own records and answers. Sign and date the request personally only after checking it.
Confirm the receiving office and process before sending. If a court petition is needed, obtain the proper form and instructions; this inquiry is not a substitute.
Keep what you send and what you receive.

WHAT IT COSTS AND WHETHER A WAIVER EXISTS

No held source establishes a fee or fee waiver for a section 1017A correction. Ask the clerk of the Family Court that entered the adjudication about any fee and waiver procedure, and confirm them with the office identified to handle the correction before sending anything or paying.

SERVICE OR NOTICE

The held records do not establish a service or notice requirement for this correction. Ask the clerk of the Family Court that entered the adjudication whether anyone must receive a copy, and how, before submitting the request. Do not assume that no service is required.

WHEN TO STOP AND GET HELP

If the office says the record is ineligible and you disagree, does not answer, or answers without resolving the issue, contact a lawyer or a legal-aid office.
Get help if a court petition is required, if the record belongs to the section 1017 or section 1018 branch instead, or if an immigration question is involved.